

ORIGINAL

No. 95-1691

Supreme Court, U.S.

FILED

MAY 20 1996

CLERK

IN THE
SUPREME COURT OF THE UNITED STATES
OCTOBER TERM, 1995

PENNSYLVANIA - PETITIONER

VS.

EDWIN LABRON - RESPONDENT

MOTION FOR LEAVE TO PROCEED IN *FORMA PAUPERIS*

The petitioner asks leave to file the attached Brief In Opposition to the Commonwealth of Pennsylvania's Petition for a writ of certiorari without prepayment of costs and to proceed *in forma pauperis*.

☒ Petitioner has previously been granted leave to proceed *in forma pauperis* in the following court(s):

All Pennsylvania Courts.

☐ Petitioner has not previously been granted leave to proceed *in forma pauperis* in any other court.

Petitioner's affidavit or declaration in support of this motion is attached hereto.

Edwin Labron

(Signature)

RECEIVED

MAY 22 1996

OFFICE OF THE CLERK
SUPREME COURT, U.S.

30 pp

**AFFIDAVIT OR DECLARATION IN SUPPORT OF
MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS**

I, Edwin Labron, am the respondent in the above entitled-case. In support of my motion to proceed without being required to prepay fees, costs or give security therefor, I state that because of my poverty I am unable to pay the costs of this case or to give security therefor; and I believe I am entitled to redress.

I further swear that the responses I have made to the questions and instructions below relating to my ability to pay the cost of proceeding in this court are true.

1. Are you presently employed? Yes___ No^X___

a. If the answer is yes, state the amount of your salary or wages per month and give the name and address of your employer.

b. If the answer is no, state the date of your last employment and the amount of salary or wages per month which you received. I worked about 9 months during 1994. I received about \$650 a month.

2. Have you received within the past twelve months any income from a business, profession or other form of self-employment, or in the form of rent payments, interest, dividends, or other sources? Yes^X No___

a. If the answer is yes, describe each source of income and state the amount received from each during the past twelve months. S.S.I. - \$85/month
Social Security - \$435/month

3. Do you own any cash or have a checking or savings account? Yes^X No___

a. If the answer is yes, state the total value of the items owned. about \$200

4. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)? Yes___ No^X___

a. If the answer is yes, describe the property and state its approximate value.

5. List the persons who are dependent upon you for support and state your relationship to those persons.

I declare under penalty of perjury that the foregoing is true and correct. Executed on:
May 17, 1996.

Edwin Labron
(Signature)

NO. 95-1691

IN THE SUPREME COURT OF THE UNITED STATES

OCTOBER TERM, 1995

COMMONWEALTH OF PENNSYLVANIA

V.

EDWIN LABRON,
Respondent

BRIEF IN OPPOSITION TO THE COMMONWEALTH OF
PENNSYLVANIA'S PETITION FOR A WRIT OF CERTIORARI

JOHN W. PACKEL, Assistant Defender
Chief, Appeals Division
Identification No. 13255
HELEN A. MARINO, Assistant Defender
ELLEN T. GREENLEE, Defender

Defender Association of Philadelphia
121 North Broad Street
Philadelphia, Pennsylvania 19107-1913
Identification No. 00001
(215) 568-3190

May, 1996

QUESTIONS PRESENTED

1. Should the Petition for Writ of Certiorari be denied because Petitioner has inaccurately stated the facts necessary to this Court's consideration of the merits of the case, and has thereby framed for review an issue different from that decided by the Pennsylvania courts?

2. Should the Petition for Writ of Certiorari be denied because the state court's judgment rests on adequate and independent state grounds, namely Article I, Section 8 of the Pennsylvania Constitution?

TABLE OF CONTENTS

	<u>PAGE</u>
Questions Presented	i
Table Of Authorities	iii
Statement Of Jurisdiction	1
Constitutional And Statutory Provisions Involved	1
Statement Of The Case	2-7
Argument	8-21
I. A WRIT OF CERTIORARI SHOULD BE DENIED BECAUSE PETITIONER HAS INACCURATELY STATED THE FACTS NECESSARY TO THIS COURT'S CONSIDERATION OF THE MERITS OF THE CASE, AND HAS THEREBY FRAMED FOR REVIEW AN ISSUE DIFFERENT FROM THAT DECIDED BY THE PENNSYLVANIA COURTS.	8-12
II. THIS COURT LACKS JURISDICTION BECAUSE THE STATE COURT'S DECISION RESTS UPON AN ADEQUATE AND INDEPENDENT STATE GROUND.	13-21
Conclusion	22

**TABLE OF AUTHORITIES
FEDERAL CASES**

<u>Carney v. California</u> , 471 U.S. 386 (1985)	10, 11
<u>Carroll v. United States</u> , 267 U.S. 132 (1925)	14
<u>Chambers v. Maroney</u> , 399 U.S. 42 (1970)	14
<u>Herb v. Pitcairn</u> , 324 U.S. 117 (1945)	13
<u>Michigan v. Long</u> , 463 U.S. 104 (1983)	13, 20, 21
<u>New York v. Belton</u> , 453 U.S. 454 (1981)	16
<u>United States v. Ross</u> , 456 U.S. 798 (1982)	10, 11

STATE CASES

<u>Commonwealth v. Baker</u> , 518 Pa. 145, 541 A.2d 1381 (1988)	11, 14, 19
<u>Commonwealth v. DeJohn</u> , 486 Pa. 32, 403 A.2d 1283 (1979)	17
<u>Commonwealth v. Edmunds</u> , 526 Pa. 374, 586 A.2d 887 (1991)	16, 17
<u>Commonwealth v. Holzer</u> , 480 Pa. 93, 389 A.2d 101 (1978)	15, 19
<u>Commonwealth v. Ionata</u> , 518 Pa. 472, 544 A.2d 917 (1988)	14
<u>Commonwealth v. Martin</u> , 534 Pa. 136, 626 A.2d 556 (1993)	17
<u>Commonwealth v. Mason</u> , 535 Pa. 560, 637 A.2d 251 (1993)	16, 17, 18
<u>Commonwealth v. Matos</u> , 672 A.2d 769 (1996)	16
<u>Commonwealth v. Morris</u> , 537 Pa. 417, 644 A.2d 721 & n.3 (1994), <u>cert. denied</u> , 115 S. Ct. 610 (1994)	19
<u>Commonwealth v. Rodriguez</u> , 526 Pa. 268, 585 A.2d 988 (1991)	11
<u>Commonwealth v. Rosario</u> , 538 Pa. 400, 648 A.2d 1172 (1994)	19
<u>Commonwealth v. Tarbert</u> , 517 Pa. 277, 535 A.2d 1035 (1987)	16
<u>Commonwealth v. White</u> , ___ Pa. ___, 669 A.2d 896 (1996)	16, 18, 19, 20

STATEMENT OF JURISDICTION

This Court is without jurisdiction to hear the case at bar because the decision of the Pennsylvania Supreme Court rests upon adequate and independent state grounds, namely, Article I, Section 8 of the Pennsylvania Constitution, as discussed more fully, *infra*.

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

In addition to the Fourth and Fourteenth Amendments of the United States Constitution, set forth in the Commonwealth of Pennsylvania's Petition for Writ of Certiorari, this case involves Article 1, Section 8 of the Pennsylvania Constitution, and Rule 323(h) of the Pennsylvania Rules of Criminal Procedure, 18 Pa. C.S.

Article I, Section 8 of the Pennsylvania Constitution provides:

Security from searches and seizures

The people shall be secure in their persons, houses, papers and possessions from unreasonable searches and seizures, and no warrant to search any place or to seize any person or things shall issue without describing them as nearly as may be, nor without probable cause, supported by oath or affirmation subscribed to by the affiant.

Rule 323 of the Pennsylvania Rules of Criminal Procedure, which governs the procedure for motions to suppress evidence and hearings on such motions, states in pertinent part:

(h) The Commonwealth shall have the burden of going forward with the evidence and of establishing that the challenged evidence was not obtained in violation of the defendant's rights. . . .

STATEMENT OF THE CASE

Respondent Edwin Labron and others were arrested on August 24, 1990, and charged with conspiracy and violations of Pennsylvania's Controlled Substance, Drug, Device and Cosmetic Act. After the arrest, police conducted a warrantless search of a stationary car that respondent and others allegedly were using to store the drugs.

Respondent moved to suppress the physical evidence (alleged cocaine) seized from the car, citing both state and federal constitutional violations. App. 57-58. At the hearing on the motion, police testified that on August 24, 1990, they conducted surveillance of a drug dealing operation carried on at a certain Philadelphia street. The police had been gathering information about the operation for some six weeks, but acted on August 24 hoping to make a "bust" timed to allow police not only to arrest the street dealers, but also to intercept and seize a new shipment of drugs and the persons delivering it. One officer conducted surveillance, watching what appeared to be the sale of drugs on the street awaiting the delivery of more drugs, while ten others acted as backup. App. 59-66, 132. After about two hours of watching, the surveilling officer observed the delivery. App. 66-70. This new shipment was placed in the trunk of the same car that the street dealers had already been using to store the drugs they were selling. App. 68-69. Backup officers were contacted and arrested the parties involved, including respondent, who is alleged to have been one of the persons selling the drugs to street customers. Police then searched the car that had been used to store the drugs

for the street sales. They recovered alleged cocaine from the truck and money from the interior. App. 70-73, 126-132, 194-96, 199-200.

On March 5, 1992, Judge G. Craig Lord of the Philadelphia Court of Common Pleas granted the motion and suppressed the evidence seized from the car that was parked on the street and had been used to store the drugs. The evidence that was critical to the suppression court's decision was testimony that, even before going to the scene to make their bust, the police possessed substantial information, from various sources including the surveilling officer's own prior observations, that targeted the location as well as the particular car ultimately searched. That information could have allowed the police to get a warrant before they even went to the scene. App. 45-46, 52. The Pennsylvania Supreme Court accepted the suppression judge's findings, and agreed with his reasoning. App. 21-25.

Throughout its Petition for a Writ of Certiorari, petitioner inaccurately and inadequately recounts those facts that were essential to the state courts' decisions. Petitioner instead skirts the true facts of this case, repeatedly suggesting, in contravention of the record and express findings of the state courts, that the police were on the scene that day for the purpose of gathering needed corroboration for otherwise uncorroborated information. Petitioner thus inaccurately implies that police could not have had probable cause, and thus could not have obtained

a warrant, until they made their observations on the scene that day. Petition, pp. 3, 7, 8, 11. The record belies this view.

More specifically, the evidence that the Commonwealth seeks to avoid is as follows. As the suppression judge noted in his findings of fact,¹"the credible evidence at the hearing on the motion to suppress established that a considerable time prior to noon on August 24, 1990," Police Officer Gerald Nimmo "received information that led him to believe that Raphael Melendez, acting with others, was selling cocaine in the 900 block of Auburn Street in Philadelphia (N.T. 85)." App. 45. Specifically, the hearing judge relied upon the Officer's testimony that:

A.[Officer Nimmo]: I had information that Raphael Melendez lived at 913 Auburn Street. He was the one that had the workers on the street and that he had received, he would receive his cocaine. It would be delivered on Auburn Street and he used several cars to store the stuff. One was a Lincoln. There was another car on the north side of the street. I don't recall what that was now. It was an abandoned car. There was no tags on that.

Q. And when did you get that information?

MR. MECOLI [the prosecutor]: Objection.

THE COURT: Overruled.

THE WITNESS: I had gotten that information from numerous, from several places, from my own investigation, from other people that had been arrested, from people that called from the neighborhood.

¹ The Commonwealth did not dispute the suppression court's findings of fact in its appeal, as those facts are supported by the record.

BY MR. GAY [counsel for co-defendant]:

Q. And how long had you had that information before you went to make your surveillance that day?

A. I had been doing surveillances on that street.

Q. I beg your pardon?

A. I had been doing surveillances on that street and I had made several arrests, other arrests.

App. 132-33. The officer, however, had never seen a delivery made to Raphael Melendez, but had information that he would see one that day. App. 132-33.

Indeed, as Judge Lord specifically noted (see App. 46), the officer had been investigating for six weeks: Nimmo testified that he had had the block under investigation and had made no less than five narcotics arrests on the block within the past six weeks (App. 60-61). The officer had also testified that, in addition to his own arrests on the block, he had previously surveilled the block, walked through the neighborhood, and observed other transactions in the area. He had also been involved with other officers who had made purchases in that block. App. 61-62, 72, 132-33.

The officer was also explicit in his testimony that his advance information specifically included the car at issue here, a blue Lincoln:

Q. [by the Court]: What information did you have about Mr. Melendez before you went out there that day?

A. I had information that Mr. Melendez lived in 913 Auburn, that on the eastern half of Auburn Street he was the one that was selling. He had the people employed selling cocaine out

there. He had a heavy foot traffic and that they were storing cocaine when it was brought in. It was stored in either the abandoned car. It was a dark color. I don't recall. Or the Lincoln that was parked on the curb.

App. 168. And again on the court's questioning:

Q. Is it your testimony that before you went out to Auburn Street you had specific information about this Lincoln automobile before you got there that day?

A. That and another car, yes, sir.

App. 181.

Armed with that information and with as many as ten other officers acting as backup, App. vol.II, 142, the police went to the scene and allegedly observed respondent and another engage in what appeared to be drug transactions. As Petitioner relates, they were resupplied from the trunk of the Lincoln automobile. App. 59-60. Two hours later, when the anticipated delivery arrived and, like the other drugs, were stored in the Lincoln automobile, police moved in. They arrested respondent and others, searched the Lincoln, and seized alleged narcotics stored in the trunk. App. 72, 130, 132, 194-96. When police attempted to start the car to impound it, they found that it was inoperable. App. 180.

Based upon Pennsylvania decisional law, the suppression judge found that the prosecution had not met its burden under Rule 323(h) of the Pennsylvania Rules of Criminal Procedure, 18 Pa. C.S., to prove that respondent's state and federal constitutional rights had not been violated. On the facts found, the suppression court ruled that Petitioner, the Commonwealth, had not proved that any exigency justified applying an automobile exception to the warrant

requirement or excusing the police from obtaining a warrant under either the Pennsylvania Constitution or the United States Constitution. The evidence did not prove an unplanned stop by police of a moving vehicle, or the fortuitous development of probable cause to search during surveillance or investigation. App. 52-53. Rather, the evidence showed that well before the day of the search, the police officer knew that the car in question was routinely used to store drugs on that block, and the Commonwealth had not established that this information was inadequate to support a warrant. App. 53.

The Commonwealth appealed the suppression order, and the Superior Court reversed. See generally App. 36 et seq. The Pennsylvania Supreme Court, however, agreed with the suppression court. It accepted the suppression court's findings and conclusion that the automobile exception was not applicable because of the extensive advance information possessed by the police. It thus agreed that the evidence seized from the car pursuant to the warrantless search should have been suppressed, not only under the federal constitution, but under the state constitution as well. App. 21-25.

ARGUMENT

I. A WRIT OF CERTIORARI SHOULD BE DENIED BECAUSE PETITIONER HAS INACCURATELY STATED THE FACTS NECESSARY TO THIS COURT'S CONSIDERATION OF THE MERITS OF THE CASE, AND HAS THEREBY FRAMED FOR REVIEW AN ISSUE DIFFERENT FROM THAT DECIDED BY THE PENNSYLVANIA COURTS.

Rule 14.4 of this Court's Rules of Procedure states that sufficient reason exists to deny a petition for certiorari where the petitioner has not presented with accuracy "whatever is essential to ready and adequate understanding of the points requiring consideration." Petitioner here has inaccurately stated the critical facts and conclusions which form the basis of both the suppression court's ruling and the Pennsylvania Supreme Court's holding. Accordingly, the petition should be denied.

Specifically, in its Statement of the Case and through its argument, the Commonwealth repeatedly states the case so as to lead the Court to believe that, before the police began surveillance on the day in question, the police had only an uncorroborated tip of drug activity at that location. Petitioner states to the Court that a "police officer investigating drug dealing on a particular street in Philadelphia got a tip that drug dealers were stashing cocaine in certain cars parked on the block," and that police went to the scene on August 24, 1990 to corroborate that "tip." Petition, p.3. Petitioner represents that, "Recognizing that the mere existence of a tip often will not establish probable cause, the police chose to corroborate their information through

surveillance at the scene." Petition, p. 7. Petitioner writes that "the Pennsylvania Supreme Court believed that, because the police had uncorroborated information about the car before they conducted surveillance, they were legally obligated to get a search warrant." Petition, p. 7. Petitioner asks this Court to believe that the Pennsylvania Supreme Court's holding in this case requires the police on the scene to "immobilize the suspect vehicle for several hours" in order to obtain the warrant." Petition, p. 11.

These assertions about the facts of this case and the Pennsylvania Supreme Court's decision are inaccurate and warrant this Court's denial of the requested writ. The facts, as found by the suppression court and accepted by the Pennsylvania Supreme Court, show that during a six week investigation of the Philadelphia street in question, police had learned the details of a drug dealing business operating at a specific end of a certain city block. Police knew that the dealers routinely stored drugs in one of two cars parked on that block. The record also establishes that the sources for this information were far more significant and varied than an "uncorroborated tip" from a single source. Quite the contrary, the officer's testimony was that the information came from numerous sources: from others arrested on the block, from neighbors, even from the surveilling officer himself. Moreover, police did not claim to need on-scene corroboration of their information about drug dealing or about the car. Rather, as the officer testified, police were expecting to see a delivery of more drugs and were waiting until that shipment

arrived before making their move. From the evidence, the lower court reasonably concluded that the information, corroborated through so many different sources over such an extensive period of time and targeting the automobile in question, could well have furnished probable cause well before the events of August 24 unfolded.

It therefore is a mischaracterization of this case for Petitioner to represent that the police approached the street on August 24 looking for corroboration because they had only unverified information in hand. From this mischaracterization of the facts of the case, however, petitioner builds its argument. Based on inaccurate facts, petitioner inaccurately represents the holding and necessary import of the Pennsylvania Supreme Court's decision and urges that the holding is in direct conflict with the precedents of this Court such as Carney v. California, 471 U.S. 386 (1985), and United States v. Ross, 456 U.S. 798 (1982).

First, nothing in the Pennsylvania Supreme Court's decision in this case would require police to impound or hold a vehicle "for several hours" so that police can obtain a warrant, as the Commonwealth claims. Nor would it require police to "wait further" to get a warrant and thereby risk the loss of evidence, as Petitioner claims. Petition, p. 11. Such a holding would be premised on a determination that police did not acquire probable cause until they were on the scene and actually encountered the vehicle, and thus could not have previously obtained a warrant. Those facts simply were not presented by this case. Indeed, when

presented with facts like that, the Pennsylvania Supreme Court, like this Court, has held that no warrant is necessary under the Fourth Amendment. E.g., Commonwealth v. Rodriguez, 526 Pa. 268, 585 A.2d 988 (1991); Commonwealth v. Baker, 518 Pa. 145, 541 A.2d 1381 (1988).

Second, although the inaccurate facts related by petitioner allow it to posit a direct conflict with precedents of this Court such as California v. Carney, 471 U.S. 386 (1985), or United States v. Ross, 456 U.S. 798 (1982), there is no such conflict based upon the actual facts, as found by the state courts. Unlike the case at bar, in Carney and in Ross, police had uncorroborated information about a vehicle and illegal activity involving that vehicle. In each case, they went to the scene, obtained necessary corroboration, and promptly acted upon that corroboration by searching without a warrant. In each of those cases, this Court determined that the police were justified, under the automobile exception to the warrant requirement, to search the vehicle at the scene without a warrant. These cases, however, did not present the factual scenario that is present in respondent's case. Indeed, nor does any of this Court's precedents cited by Petitioner.

The Pennsylvania Supreme Court decision in this case thus does not conflict with this Court's precedents and has not in the least "abolished" the federal "automobile exception" to the warrant requirement, as the Commonwealth hyperbolically asserts. It does not "turn seventy years of constitutional automobile-search jurisprudence on its head." Petition, p. 6. On the contrary, by

declining automatically to except all automobiles searches from the warrant requirement, the Pennsylvania Supreme Court has done nothing more in this case than require that the automobile exception be considered and applied according to the facts of the case. Where the facts of a given case demonstrate that the "exigency" which has traditionally underpinned the automobile exception and is still recognized as one of its justifications -- the threatened loss of evidence due to the general mobility of vehicles -- is not implicated, the exception might not apply. And, with the case at bar, it has specifically held nothing more than that, in the distinct and limited situation where the evidence demonstrates a clear advance knowledge and opportunity to obtain a warrant to search a car before the police even come upon that car, the police should obtain that warrant. That holding poses no threat or impairment to law enforcement efforts, and no direct conflict with this Court's precedents.

In sum, the Commonwealth's petition, based upon an inaccurate statement of the case, and the consequentially inaccurate interpretation of the Pennsylvania Supreme Court's holding in this case, should be denied. The Commonwealth has not presented an argument to this Court to explain why this case, as limited by the facts found by the state courts, warrants this Court's attention.

II. THIS COURT LACKS JURISDICTION BECAUSE THE STATE COURT'S DECISION RESTS UPON AN ADEQUATE AND INDEPENDENT STATE GROUND.

This Court should deny the Petition for Writ of Certiorari because the Pennsylvania Supreme Court's judgment rests upon adequate and independent state grounds which undermine the jurisdiction of this Court. Michigan v. Long, 463 U.S. 104 (1983); Herb v. Pitcairn, 324 U.S. 117, 126 (1945). In Michigan v. Long, this Court held that it will not review a state court judgment when it is clear from the state court's opinion that the judgment rests upon adequate and independent state grounds. A clear, adequate and independent state ground exists in this case in the form of Article I, Section 8 of the Pennsylvania Constitution.

In Michigan v. Long, the state court had cited the Michigan Constitution in the course of its opinion, but this Court held that the passing references were not sufficient to establish an adequate and independent state ground. This Court noted that the state court had only twice cited its state constitution, but had cited no state cases to support the conclusion that the search was unconstitutional on the state ground. Moreover, the state court had relied exclusively upon an interpretation of Supreme Court and federal cases. Under these circumstances, it appeared to this Court that the Michigan court felt compelled to reach the result it did because of its interpretation of federal law.

That plainly is not the case here. Although reaching the same result under the federal and state constitutions, the Pennsylvania Supreme Court's decision in this case does not suggest in any way

that its consideration of the state constitution was secondary to, contingent upon, or compelled by its understanding of federal law. First, besides citing to the Pennsylvania constitutional provision at issue, the Pennsylvania Supreme Court sets forth that provision in its entirety, App. 8 n.4, refers to it through the opinion, and mentions both federal and state constitutional "standards." App. 13.

Furthermore, after only a brief discussion of the origin of the "automobile exception" in Carroll v. United States, 267 U.S. 132 (1925), and an even briefer discussion of Chambers v. Maroney, 399 U.S. 42 (1970), the Pennsylvania Supreme Court in this case proceeded to rely exclusively on state decisions. This is distinctly different from the situation in Michigan v. Long, in which, aside from two citations to the Michigan Constitution, the state's high court relied upon federal decisions. In sharp contrast, the Pennsylvania state decisions cited by the Pennsylvania Supreme Court in this case represent a body of law and tradition in this Commonwealth of inquiring into the necessity for a warrantless search of an automobile. Repeatedly, those cases have taught that vehicles are not "per se" excepted from the warrant requirement and will not be applied automatically without an examination of the circumstances of the case. The decisions cited in this case rested not only on the Fourth Amendment, but on Article I, Section 8 as well. E.g. Commonwealth v. Baker, 518 Pa. 145, 541 A.2d 1381 (1988); Commonwealth v. Ionata, 518 Pa. 472,

544 A.2d 917 (1988); Commonwealth v. Holzer, 480 Pa. 93, 389 A.2d 101 (1978).

In the end, the Pennsylvania Supreme Court's decision below recognizes that what has emerged through the years of the Pennsylvania Supreme Court's consistent approach toward the search of vehicles is a jurisprudence of Pennsylvania:

Therefore, we conclude that this Commonwealth's jurisprudence of the automobile exception has long required both the existence of probable cause and the presence of exigent circumstances to justify a warrantless search. Furthermore, we have consistently recognized that when police have advance information that a particular vehicle carrying evidence of a crime would be situated at a particular locale, such that sufficient time exists to obtain a warrant, the failure of the police to secure a warrant prior to searching the vehicle will render the search unreasonable.

App. 20 (emphasis added).

Moreover, even in dissent, Justice Castille notes that "the majority correctly characterizes Pennsylvania law requiring the 'automobile exception.'" App. 26 (Castille, J., dissenting).

Additionally, any suggestion that the Pennsylvania Supreme Court felt bound by federal constitutional law to render a decision it would not otherwise have rendered is belied by a host of recent Pennsylvania decisional law explicating Article I, Section 8: its distinct analytical differences from the Fourth Amendment, and the broader protections provided to citizens by it. Demonstrating its commitment to independent examination of Article I, Section 8, the Pennsylvania Supreme Court has asked and encouraged litigants raising state constitutional claims on appeal to provide a

separate, four-pronged and detailed state constitutional argument. Commonwealth v. Edmunds, 526 Pa. 374, 586 A.2d 887 (1991); Commonwealth v. White, __ Pa. __, 669 A.2d 896 (1996). Indeed, in Edmunds, the Pennsylvania high court wrote:

Here in Pennsylvania, we have stated with increasing frequency that it is both important and necessary that we undertake an independent analysis of the Pennsylvania Constitution, each time a provision of that fundamental document is implicated. Although we may accord weight to federal decisions where they "are found to be logically persuasive and well reasoned, paying due regard to precedent and the policies underlying specific constitutional guarantees," Commonwealth v. Tarbert, 517 Pa. 277, 283, 535 A.2d 1035, 1038 (1987), quoting Brennan, State Constitutions and the Protection of Individual Rights, 90 Harv. L. Rev. 489, 502 (1977), we are free to reject the conclusions of the United States Supreme Court so long as we remain faithful to the minimum guarantees established by the United States Constitution.

526 Pa. at 389-90, 586 A.2d at 894-95.

More importantly, numerous Pennsylvania Supreme Court decisions of recent years have recognized that Article I, Section 8 provides greater protection against searches and seizures than does the Fourth Amendment, including Commonwealth v. White, __ Pa. __, 669 A.2d 896 (1996), a car search case decided the same day as the case at bar, which rejected New York v. Belton, 453 U.S. 454 (1981), under Article I, Section 8. See also Commonwealth v. Matos, 672 A.2d 769 (1996) (rejecting California v. Hodari. D., 499 U.S. 621 (1991), under Article I, Section 8); Commonwealth v. Mason, 535 Pa. 560, 637 A.2d 251 (1993) (refusing to apply under Article I, Section 8, the "inevitable discovery doctrine" as

applied in Segura v. United States, 468 U.S. 796 (1984); Commonwealth v. Martin, 534 Pa. 136, 626 A.2d 556 (1993) (dog sniff, deemed not to be a search under federal law, held to be a search requiring probable cause under Article I, Section 8); Commonwealth v. Edmunds, 526 Pa. 374, 586 A.2d 887 (1991) (rejecting United States v. Leon, 468 U.S. 897 (1984), refusing to find a "good faith exception" to the exclusionary rule in Pennsylvania, and determining that Pennsylvania's exclusionary rule is constitutionally mandated, not supervisory); Commonwealth v. DeJohn, 486 Pa. 32, 403 A.2d 1283 (1979) (declining to follow United States v. Miller, 425 U.S. 435 (1976), under Article I, Section 8).

As described and interpreted by the Pennsylvania Supreme Court, Article I, Section 8 gives stronger recognition to the privacy interests of Pennsylvania's citizens; those privacy interests weigh more heavily in the balance against the needs of law enforcement than is the case under the Fourth Amendment. In Commonwealth v. Mason, 435 Pa. at 571 n.3, 637 A.2d at 251 n.3, Justice Flaherty wrote for the Pennsylvania Supreme Court:

Upon reflection, it is apparent that in the context of the Fourth Amendment, when a court deters police misconduct, it necessarily also safeguards privacy and the probable cause requirement. Why would a court deter police misconduct at all if not to deter police from improperly invading the right of persons to be secure, i.e., private, in their persons, houses, papers, and effects? Detering police misconduct is not an end in itself. The ultimate distinction, then, between the federal and the Pennsylvania analysis is not that the federal courts seek only to deter police misconduct and the Pennsylvania courts

seek to protect certain rights, but that the federal courts place less importance than do we on the right of privacy. Therefor, they balance the interests differently and reach a different conclusion as to the relative importance of privacy as against securing criminal convictions. (emphasis added.)

In Commonwealth v. White, __ Pa. __, 669 A.2d 896, 902, a car search case decided the same day as the case at bar, and relied upon in the case at bar, Justice Flaherty again wrote for the Pennsylvania Supreme Court majority:

As we stated in Commonwealth v. Mason, 535 Pa. 560, n.3., 637 A.2d 251 n.3 (1993), this Court, when considering the relative importance of privacy as against securing criminal convictions, has struck a different balance than has the United States Supreme Court, and under the Pennsylvania balance, an individual's privacy interests are given greater deference than under federal law.

In his concurring opinion in White, Justice Montemuro, who authored the opinion in the case at bar, believed that the majority should have done a more exhaustive state analysis than it had before departing from federal precedent. Still, Justice Montemuro agreed with the result. He provided a telling state constitutional analysis of car searches and privacy interests that demonstrates the adequacy and independence of the state constitutional ground in the case at bar as well as in White. Justice Montemuro wrote:

In the instant case, Appellant is asserting a privacy interest in his automobile. Of course, our cases have long recognized a diminished privacy interest in an automobile based on federal case law. [Citations omitted.] However, that federal privacy interest was substantially curtailed by the United States Supreme Court in Belton. My research indicates that we have also recognized a constitutionally protected

reasonable expectation of privacy in an automobile under Article I, Section 8 of the Pennsylvania Constitution. See Commonwealth v. Holzer, 480 Pa. 93, 101 & n.4, 389 A.2d 101, 105-06 & n.4 (1978); Commonwealth v. Baker, 518 Pa. 145, 148, 541 A.2d 1381, 1383 (1988), overruled on other grounds by Commonwealth v. Rosario, 538 Pa. 400, 648 A.2d 1172 (1994); Commonwealth v. Morris, 537 Pa. 417, 422 & n.3, 644 A.2d 721, 724 & n.3 (1994), cert. denied, 115 S. Ct. 610 (1994). In Holzer, we held that "constitutional protections are applicable to a person's car" under Article I, Section 8 of the Pennsylvania Constitution. Holzer, 480 Pa. at 103, 389 A.2d at 106. In Baker, we held that "[i]t is well established that automobiles are not per se unprotected by the warrant requirement of . . . Article I, Section 8 of the Pennsylvania Constitution." Baker, 518 Pa. at 148, 541 A.2d at 1383.

Thus, the history of Article I, Section 8 and case-law interpreting it reveal a history of according a limited expectation of privacy in an automobile independently under the Pennsylvania Constitution. Therefore, the question before us today is not whether we wish to extend additional privacy protections to the appellant but whether we wish to follow the United States Supreme Court and sharply curtail a privacy interest long recognized by this Court. In my opinion, this prong weighs against automatically adopting Belton. Instead, I believe we must carefully consider the merits of severely diminishing a privacy right independently recognized under our constitution.

Commonwealth v. White, __ Pa. at __, 669 A.2d at 905.

Further, in finally concluding that Belton should be rejected, Justice Montemuro wrote:

I agree that the Belton rule is seriously flawed and has no place in Pennsylvania jurisprudence. It has long been the rule in this Commonwealth that the police may search the passenger compartment of a car incident to an arrest only to protect their safety or to prevent occupants from destroying contraband.

Timko, 491 Pa. at 37, 417 A.2d at 622. In contrast, the Belton rule allows the police to search the passenger compartment and any containers contained therein even where no such exigency exists. . . . In my opinion, Belton carves too wide an exception to the warrant requirement where none is justified.

Id. at ___, 669 A.2d at 908.

From all of the above, it is clear that Pennsylvania's references to the state constitution in the case at bar reflect an adequate and independent state ground for the Pennsylvania Supreme Court's decision. As interpreted and applied by Pennsylvania's high court, Article I, Section 8 is both separate and independent from federal law. In the context of search and seizure claims generally, and in the context of automobile searches in particular, the state's reliance upon Article I, Section 8 reflects a distinct basis for relief that is different from its federal counterpart. It would thus be unfair and inaccurate to conclude that the Pennsylvania Supreme Court "decided the case the way it did because it believed that federal law required it do so." Michigan v. Long, 463 U.S. at 1041. Rather, Pennsylvania's decisional law and Article I, Section 8 were recognized to provide an independent basis for concluding that Article I, Section 8 had been violated by the search in this case.

This Court stated in Herb v. Pitcairn, and reiterated in Michigan v. Long, that

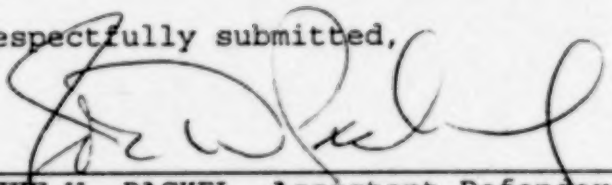
The jurisdictional concern is that we not "render an advisory opinion, and if the same judgment would be rendered by the state court after we corrected our views of federal laws, our review could amount to nothing more than an advisory opinion."

Michigan v. Long, 463 U.S. at 1042 (quoting Herb v. Pitcairn, 324 U.S. at 126). That is precisely the situation here. An adequate and independent state ground exists, and this Court should deny the Petition for Writ of Certiorari.

CONCLUSION

For the foregoing reasons, petitioner's request for a writ of certiorari should be denied.

Respectfully submitted,



JOHN W. PACKEL, Assistant Defender
Chief, Appeals Division
Identification No. 13255

HELEN A. MARINO, Assistant Defender
ELLEN T. GREENLEE, Defender

IN THE SUPREME COURT OF THE UNITED STATES

OCTOBER TERM, 1995

NO. 95-1691

COMMONWEALTH OF PENNSYLVANIA

V.

EDWIN LABRON,
Respondent

CERTIFICATE OF SERVICE

I, John W. Packel, a member of the Bar of this Court, hereby certify that on this 20th day of May, 1996, copies of the Brief In Opposition To The Commonwealth of Pennsylvania's Petition For A Writ Of Certiorari and the Motion For Leave To Proceed In Forma Pauperis and Affidavit in Support Thereof in the above-entitled case were personally served upon

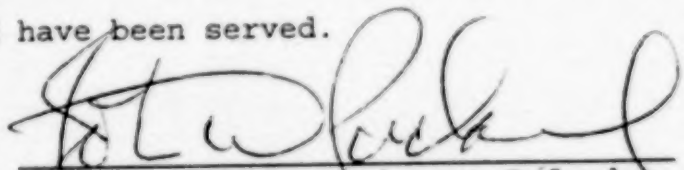
Ronald Eisenberg, Esquire (215) 686-5700
Deputy District Attorney of Philadelphia
1421 Arch Street
Philadelphia, Pennsylvania, 19102

counsel for the petitioner herein. I further certify that all parties required to be served have been served.

RECEIVED

MAY 22 1996

OFFICE OF THE CLERK
SUPREME COURT, U.S.



JOHN W. PACKEL, Assistant Defender
Defender Association of Philadelphia
121 North Broad Street
Philadelphia, Pennsylvania 19107
(215) 568-3190

Date: May 20, 1996

**DEFENDER ASSOCIATION
OF PHILADELPHIA**

121 North Broad Street
Philadelphia, PA 19107-1913
(215) 568-3190

Ellen T. Greenlee
Defender

May 20, 1996

William K. Suter, Clerk
United States Supreme Court
One First Street, N.E.
Room 30
Washington, DC 20543

Re: Pennsylvania v. Edwin Labron
U.S. Supreme Court No. 95-1691

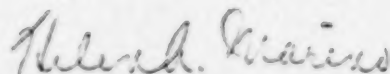
Dear Mr. Suter:

Enclosed for filing please find an original and ten copies of Respondent Edwin Labron's Motion to Proceed in Forma Pauperis and Brief in Opposition to the Petition for Writ of Certiorari in the above-captioned matter.

I would appreciate your acknowledging receipt of these documents by stamping and returning to me the enclosed copy of this letter. I have enclosed for your convenience a stamped, self-addressed envelope.

Thank you for your attention.

Very truly yours,



HELEN A. MARINO
Assistant Defender

cc w/encl: Ronald Eisenberg, Esquire
Deputy District Attorney

